
Tyler O'Connell

11:46 AM (1 hour ago)

to me, Monique, Chad, Veronica, Maria 

Mr. Rosario,

None of your cited authorities apply to the current situation where, here, an Anti-SLAPP motion is pending. Your position on this issue—and generally in this litigation—has absolutely zero merit and is obviously designed to waste my time, my clients' resources, and the Court's time. The Court is not going to appreciate your incessant clogging of the docket with meritless "motions," "bench briefs," and "supplemental" filings.

Moreover, your litany of case authorities cited here is completely irrelevant to the status of this litigation and appears to be nothing more than an AI-generated recitation of general principles of amendment, which adds nothing to the analysis of this situation here: where an Anti-SLAPP motion is pending. Put simply, you cannot obtain the relief you seek, here, a motion for leave to amend the pleadings while an Anti-SLAPP motion is pending. Full stop. Please actually read the words of my Opposition to your motion for leave to amend. Uploading it to ChatGPT, and receiving spoon-fed AI hallucinations, is not a proper stand-in for legal analysis.

Regards,



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From: Dylan Rosario <soltrinox@gmail.com>

Sent: Thursday, April 23, 2026 7:03 PM

To: Monique Schubert <mschubert@porterscott.com>

Cc: Chad S. Tapp <ctapp@porterscott.com>; Tyler O'Connell <toconnell@porterscott.com>; Veronica Jackson <vjackson@porterscott.com>; Maria Reyes <mreyes@porterscott.com>

Subject: Re: Rosario v CSAA, et al - Opposition - CGC-25-631802

External email



Dylan Rosario <soltrinox@gmail.com>

12:19 PM (34 minutes ago)

to Tyler, Monique, Chad, Veronica, Maria 

TO,

The FAC still has legs. Even if the judge denies a amendment at this stage , your Anti-SLAPP and § 436 MTS / Demurrer a

deficient on their face.

Anti-SLAPP: Fails at prong 1 because the gravamen is non-petitioning insurer/third-party conduct (Rusheen, Park). Fails at prong 2 because Plaintiff's showing of extra-judicial misconduct clears Soukup's minimal-merit bar. The privilege does not immunize non-communicative commercial conduct (Action Apartment).

§ 436 MTS / Demurrer: Fails because the pleaded theories are cognizable, § 3294 specificity is satisfied (College Hospital, Today's IV), standing arguments are not pleading-stage defects, and collateral estoppel is unsupported by a record of actual-and-necessary litigation (Lucido). Leave to amend is the mandatory backstop (Blank, Goodman).

Dylan Rosario